

1060.) An “actual controversy” exists where the parties have adverse positions on an existing legal relationship, and a judicial declaration would have a practical impact. (*City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 79–80.)

The controversy must be justiciable, and to be justiciable, it must be ripe. (*Wilson & Wilson v. City Council of Redwood City* (2011) 191 Cal.App.4th 1559, 1582.) “A two-pronged test is used to determine ripeness of a controversy: (1) whether the dispute is sufficiently concrete so that declaratory relief is appropriate; and (2) whether the parties will suffer hardship if judicial consideration is withheld.” (*City of Santa Monica v. Stewart* (2005) 126 Cal.App.4th 43, 64.)

Here, The FAC impermissibly seeks declarations on enforceability, scope of guaranty, effect of damage-waiver charges, insurance obligations, and bond coverage, while additionally seeking declarations on issues such as whether the Credit Application and Rental Contracts are enforceable, whether the guaranty applies, whether damage-waiver charges affect liability for repair charges, and whether bond coverage extends to categories of charges. These issues are outside of the scope of declaratory relief, and Warrior must narrow its scope to those actual, necessary declarations, rather than reiterate inappropriate declarations duplicative of the adjudication of existing causes of action. Warrior must further identify the present controversy between specific parties requiring a declaration, distinct from a money judgment.

Here, the deficiencies included in the FAC and the currently existing disputes related to key factual aspects of the claims render the pleading insufficiently definite to allow for declaratory relief.

3.

CASE #	CASE NAME	HEARING NAME
CVSW2303476	LEBLANC VS TAYLOR MORRISON HOME CORP.	MOTION TO COMPEL ARBITRATION

Tentative Ruling: Motion to Compel Arbitration is granted as to plaintiffs Robert LeBlanc, Elena LeBlanc, Defendant WLH Communities -Alderwood LLC, and Defendant Leonard’s Roofing. Remainder of case is stayed pending arbitration.

This action arises from injuries sustained by Plaintiffs Robert LeBlanc (“Robert”), Elena Marie LeBlanc (“Elena”), John Roe 1, a minor, and Jane Roe 2, a minor (“Minor Plaintiffs,” collectively, “Plaintiffs”) at their home (“Property”), which was built by Defendant WLH Communities – Alderwood, LLC (“WLH”).

In the Second Amended Complaint (“SAC”), Plaintiffs allege that they took possession of the Property on April 27, 2021. Plaintiffs allege that several months after living at the Property, they began experiencing numerous symptoms, including severe abdominal pain, migraines, nausea, blurred vision, diarrhea, constipation, etc. Plaintiffs allege that they noticed intermittent sewage or foul smells in November 2022, which they reported to Defendant Taylor Morrison (“TM”).

On January 14, 2023, Plaintiffs allege that they reported a leak to TM, who inspected the Property on January 21, 2023, and discovered that whoever had installed the pipe

had intentionally broken underneath the roofline with insulation on top of the pipes to prevent visual inspection of the broken pipes. On February 3, 2023, a City inspector investigated and notified Plaintiffs that the plumbing was an “unsafe and substandard installation,” as it “appears the plumbing vents have been intentionally cut and covered.” Plaintiff contends that TM fixed the leak that same day, and Plaintiffs’ symptoms began to substantially improve within days.

The operative complaint is the SAC, which Plaintiffs filed on February 20, 2026, against WLH and Defendant Leonard’s Roofing (together, “Defendants”), asserting causes of action for: (1) negligence; and (2) private nuisance.

On June 10, 2026, the Court sustained WLH’s unopposed demurrer to the SAC and granted Plaintiffs 20 days leave to amend the SAC to appoint a guardian ad litem for Minor Plaintiffs.

On July 24 and 30, 2026, the Court signed orders appointing guardians ad litem for Minor Plaintiffs.

On July 29, 2026, WLH filed an ex parte application to dismiss Minor Plaintiffs’ claims for failing to timely amend the SAC after the demurrer was sustained. On July 30, 2026, the Court denied WLH’s ex parte application, and granted Plaintiffs another 10 days leave to amend the SAC.

As of September 4, 2026, Plaintiffs have failed to amend the SAC to properly name Minor Plaintiffs as parties to this action through their guardians ad litem.

WLH now moves to compel arbitration and stay the action pending completion of arbitration. WLH contends the arbitration agreement is governed by the Federal Arbitration Act (“FAA”), and asserts that the arbitration agreement is not unconscionable because Plaintiffs had time to review the agreement. WLH also argues that the arbitration agreement covers subcontractors, such as co-defendant Leonard’s Roofing, and further asserts that Leonard Roofing’s construction contract contains an arbitration provision. Accordingly, WLH contends that the parties are all mutually bound to arbitrate their claims against each other.

In opposition, Plaintiffs argue that WLH waived its right to seek arbitration by delaying the motion, and further asserts that Minor Plaintiffs are not subject to the arbitration agreement.

In reply, WLH argues that Plaintiffs delayed in serving each of the three complaints, and contends that Minor Plaintiffs are not currently parties to the action because Plaintiffs have not amended the SAC. WLH further argues that staying the action would not result in inconsistent rulings because the issues of causation and damages are unique to each plaintiff.

Standard - The court must grant the motion to compel arbitration unless it finds either: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (C.C.P. §

1281.2.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.)

The moving party bears the burden of proving the existence of a valid arbitration agreement, which can be met by attaching a copy of the agreement. (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842.) The burden then shifts to the opposing party to prove any defense. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2015) 55 Cal.4th 223, 236.)

Existence of Arbitration Agreement - The motion to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (C.R.C. Rule 3.1330; see *Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218–219.) This rule does not require the movant to authenticate the agreement or do anything more than allege its existence and attach a copy. (*Condee, supra*, 88 Cal.App.4th at 218-219.) Once this is done, the burden shifts to the opposing party to demonstrate the falsity of the purported agreement. (*Ibid.*)

Moving Party's Burden - The moving party bears the burden of proving the existence of a valid arbitration agreement, which can be met by attaching a copy of the agreement. (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842.)

Plaintiffs Robert and Elena

WLH submits a copy of a Purchase Agreement (“Agreement”) executed by Robert and Elena on October 11, 2020, and by WLH on October 16, 2020. (Kurtz Decl., Exh. A [“Agreement”].) The Agreement contains an arbitration provision that covers “ANY AND ALL CLAIMS, CONTROVERSIES, BREACHES OR DISPUTES BY OR BETWEEN THE BUYER AND SELLER, ARISING OUT OF OR RELATED TO THIS PURCHASE AGREEMENT, THE PROPERTY, THE COMMUNITY, THE SALE OF THE PROPERTY BY SELLER, OR ANY TRANSACTION RELATED HERETO, WHETHER SUCH DISPUTE IS BASED ON CONTRACT, TORT, STATUTE, OR EQUITY ... WHETHER SUCH DISPUTE ARISES BEFORE OR AFTER CLOSING (EACH A “DISPUTE”), SHALL BE ARBITRATED PURSUANT TO THE FEDERAL ARBITRATION ACT...” (Agreement, ¶ 11.2.1.)

Accordingly, WLH has met its initial burden to show that a written agreement to arbitrate between itself, Robert, and Elena

Co-Defendant Leonard's Roofing

WLH also satisfies its burden to show that a written agreement exists between the parties and Leonard's Roofing, as the Agreement also states: “EITHER BUYER OR SELLER MAY JOIN SUBCONTRACTORS AND SUPPLIERS INVOLVED IN THE DESIGN AND CONSTRUCTION OF THE IMPROVEMENTS TO THE PROPERTY. THIS ARBITRATION PROVISION SHALL INURE TO THE BENEFIT OF, AND BE ENFORCEABLE BY, SELLER AND SELLER'S AFFILIATED AND RELATED ENTITIES, AND EACH OF THEIR RESPECTIVE EMPLOYEES, OFFICERS,

DIRECTORS, AGENTS, REPRESENTATIVES, CONTRACTORS, SUBCONTRACTORS..." (Agreement, ¶ 11.2.3.)

WLH also attaches a copy of the Master Subcontractor Agreement ("MSA") executed by Leonard's Roofing, which states: "In the event Contractor and any homeowner enter into an agreement containing an alternative dispute resolution procedure, including without limitation, mediation, arbitration, or judicial reference, Subcontractor agrees to be bound by and participate in any such alternative dispute resolution procedure for any and all disputes, including but not limited to, Defect Claims and Other Claims, relating directly or indirectly, to this Agreement. Upon request from Subcontractor, Contractor shall provide Subcontractor with a copy of any alternative dispute resolution procedure agreed to between Contractor and any homeowner, which alternative dispute resolution procedure is incorporated herein by reference and made part of this Agreement." (Kurtz Decl., Exh. B ["MSA"], ¶ 9.7.)

Thus, WLH has satisfied its initial burden to show that a written agreement to arbitrate exists between WLH, Robert, Elena, and Leonard's Roofing.

Opposing Party's Burden - The burden now shifts to Plaintiffs to prove any defense. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2015) 55 Cal.4th 223, 236.)

Plaintiffs do not challenge the authenticity of the Agreement, or argue that it does not apply to Robert or Elena. Leonard's Roofing does not oppose this motion, and acknowledges in the third affirmative defense in its Answer that it is bound to arbitrate any homeowners disputes. (Answer, p. 2.) Thus, WLH has established that a valid written agreement to arbitrate exists between WLH, Robert, Elena, and Leonard's Roofing.

However, Plaintiffs argue that WLH has waived its right to compel arbitration through its dilatory conduct (see below), and contends that the Agreement does not apply to Minor Plaintiffs.

FAA Preemption -The Federal Arbitration Act ("FAA") generally governs arbitration in written contracts involving interstate commerce. (9 U.S.C. § 2.) To assure uniform results as to arbitrability of disputes subject to the FAA, conflicting state law is preempted under the Supremacy Clause. (*Southland v. Corp. v. Keating* (1984) 465 U.S. 1, 12.) The party claiming that the FAA applies has the burden of proving that the underlying transaction involved interstate commerce. (*Woolfs v. Sup. Ct.* (2005) 127 Cal.App.4th 197, 211–14.)

Alternatively, the FAA applies when an arbitration agreement expressly states that it is governed by the FAA, even if there is no interstate commerce. (*Aviation Data, Inc. v. Am. Express Travel Related Servs. Co., Inc.* (2007) 152 Cal.App.4th 1522, 1534-1535; *Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 355.)

Here, the terms of the Agreement expressly states that it is governed by the FAA. (Agreement, ¶ 11.2.2 ["BUYER AND SELLER EXPRESSLY AGREE AND ACKNOWLEDGE THAT THIS PURCHASE AGREEMENT INVOLVES AND

CONCERNS INTERSTATE COMMERCE AND IS GOVERNED BY THE PROVISIONS OF THE FEDERAL ARBITRATION ACT (9 U.S.C. §1 ET SEQ.).”] Accordingly, the FAA applies to the Agreement.

Waiver - “Section 2 of the FAA provides that arbitration agreements ‘shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract’ However, like any contract right, the right to arbitrate may be waived - either expressly or by implication.” (*Davis v. Shiekh Shoes, LLC* (2022) 84 Cal.App.5th 956, 964 [citations omitted].)

“The Supreme Court has made clear that the ‘strong federal policy in favor of enforcing arbitration’ agreements’ is based upon the enforcement of contract, rather than a preference for arbitration as an alternative dispute resolution mechanism. Thus, the question of whether there has been waiver in the arbitration agreement context should be analyzed in much the same way as in any other contractual context. The essential question is whether, under the totality of the circumstances, the defaulting party has acted inconsistently with the arbitration right.” (*National Foundation for Cancer Research v. A. G. Edwards & Sons, Inc.* (D.C. Cir. 1987) 821 F.2d 772, 774 [citations omitted].)

“*Peterson* identified the following factors as relevant to assessing waiver claims: (1) whether the party’s actions are inconsistent with the right to arbitrate; (2) whether “the litigation machinery has been substantially invoked” and the parties “were well into preparation of a lawsuit” before the party notified the opposing party of an intent to arbitrate; (3) whether a party either requested arbitration enforcement close to the trial date or delayed for a long period before seeking a stay; (4) whether a defendant seeking arbitration filed a counterclaim without asking for a stay of the proceedings; (5) “whether important intervening steps [e.g., taking advantage of judicial discovery procedures not available in arbitration] had taken place”; and (6) whether the delay “affected, misled, or prejudiced” the opposing party.’ And, this test is substantially similar to the test adopted by most federal circuit courts.” (*Davis, supra*, 84 Cal.App.5th at 964-965 [citations omitted].) However, the United States Supreme Court has now clarified that “under the FAA, courts may not ‘condition a waiver of the right to arbitrate on a showing of prejudice.’” (*Id.* at 965, quoting *Morgan v. Sundance, Inc.* (2022) 596 U.S. 411.)

In *Davis*, the Court of Appeal held that the defendant had waived its right to compel arbitration where it delayed 17 months before seeking arbitration, gave no adequate explanation for its lengthy delay, appeared at a case management conference, demanded a trial, gave its own estimate of the time for trial, and represented that it was willing to participate in discovery, depositions, and expert discovery. (84 Cal.App.5th at 965.) Also, after the court set a jury trial date, defendant engaged in rounds of discovery, responded to written discovery, met and conferred on responses, and served supplemental responses. (*Id.* at 969-970.) Defendant “never once suggested that discovery should be barred because the case had to be arbitrated.” (*Id.* at 970.) Furthermore, defendant never responded to or joined in the co-defendant’s motion to stay the proceedings, and did not oppose plaintiff’s multiple requests to continue the trial and in fact it stipulated to a trial continuance so that it could complete discovery. (*Ibid.*) Again, defendant failed to inform the court that it intended to compel arbitration.

“The act of preserving its rights to a jury trial and discovery while remaining silent on arbitration was inconsistent with a right to arbitrate.” (*Ibid.*) “In light of Shiekh’s nearly one-and-a-half-year delay in moving to compel arbitration, request for trial, active participation in discovery, acquiescence to the trial and discovery schedule, and court appearances, the trial court had ample evidence from which to conclude Shiekh’s actions were inconsistent with an intent to arbitrate. Indeed, other courts have found that similar, or even shorter, periods of delay, and comparable litigation activity, were sufficient to justify a waiver of arbitration.” (*Ibid.* [citations omitted].)

In *Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, the California Supreme Court made clear that the same policy applies to cases under the California Arbitration Act (Code Civ. Proc., § 1281 et seq. [“CAA”]). Thus, whether the procedural requirements of the FAA or the CAA apply, the determination of whether a moving party has “lost its right to compel arbitration as a result of its litigation-related conduct is governed by generally applicable state law contract principles”, which do not require a showing of prejudice to establish waiver. (*Id.*) *Quach* also clarified how courts are to analyze a waiver issue without the *St. Agnes* prejudice requirement. (*Id.*, at 573.) “In ruling on a motion to compel arbitration, a court should separately evaluate each generally applicable state contract law defense raised by the party opposing arbitration. It should not lump distinct legal defenses into a catch-all category called ‘waiver.’” (*Id.*, at 583-584.) “Instead, a court should be careful to consider only those factors that are relevant to the specific state law defense the party resisting arbitration has raised.” (*Id.*, at 584.)

In determining whether a party to an arbitration agreement has lost the right to arbitrate by litigating the dispute, a court should treat the arbitration agreement as it would any other contract, without applying any special rules based on a policy favoring arbitration; that is, courts should apply the same procedural rules that they would apply to any other contract. (*Quach, supra*, 16 Cal.5th at 583.) To establish waiver under generally applicable contract law, the party opposing enforcement of a contractual agreement must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it. (*Id.* at 584.) A party may lose its right to compel arbitration as a result of its litigation conduct. (*Id.* at 583.) Simply responding to discovery and attending a status conference is not sufficient. In *Quach*, the Court found the party compelling arbitration caused undue delay, gamesmanship, and propounded discovery – suggesting it did not intend to seek arbitration prior to moving for same. (*Id.* at 586.)

Here, Plaintiffs filed the initial Complaint on April 27, 2023. Plaintiffs contend that WLH engaged in extensive meet-and-confer efforts regarding amendments to Plaintiffs’ pleadings, and appeared at the case management conference in November 2025, but failed to disclose its intent to enforce the arbitration provisions in the Agreement until March 12, 2026, nearly three years after Plaintiffs initiated this action. However, Plaintiffs’ argument does not establish when WLH knew of its right to arbitrate to support that WLH intentionally relinquished or abandon such right.

Further, WLH argues that much of the delay can be attributed to Plaintiffs, as they did not serve the Complaint until January 29, 2024, and did not serve the First Amended Complaint (“FAC”) until November 12, 2024. (Kurtz Decl. II, ¶ 5.) WLH argues that

despite acknowledging the deficiencies in the FAC in February 2025, Plaintiffs did not serve the SAC until one year later on February 20, 2026. (Kurtz Decl. II, ¶ 6-7.) Further, the evidence shows that WLH did not file an Answer until it answered the SAC on April 24, 2026. The Answer included the right to compel arbitration as an affirmative defense. (Answer, ¶ 36.) One week later, on May 1, 2026, WLH filed a demurrer to the SAC that indicated its intent to file for arbitration. (Demurrer, p. 2.) One month after the demurrer, WLH filed the instant motion to compel arbitration on June 9, 2026.

Given the above, Plaintiffs fail to establish that WLH waived its right to arbitrate.

Minor Plaintiffs - “On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: ...A party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact.” (C.C.P. § 1281.2(c).)

Plaintiffs argue that Minor Plaintiffs are not bound to arbitrate their claims because they are not signatories to the Agreement, and contend that the Court should deny the motion because compelling arbitration against Robert and Elena while staying the action against Minor Plaintiffs runs the risk of conflicting rulings under C.C.P. § 1281.2(c). WLH argues that Minor Plaintiffs are not currently parties to the action, and as such, there is no possibility of inconsistent rulings.

WLH is correct that Minor Plaintiffs are not currently named as parties to this action under the operative complaint. The procedural history shows that Plaintiffs have failed to timely amend the SAC to properly name Minor Plaintiffs in this action, despite being afforded several opportunities to do so. Specifically, on June 10, 2026, the Court sustained the demurrer to the SAC and ordered Plaintiffs to appoint a guardian ad litem for Minor Plaintiffs within 20 days of its order, or by June 30, 2026. Plaintiffs failed to do so until one month later, on July 24 and 30, 2026. On July 30, 2026, the Court denied WLH’s ex parte application to dismiss Minor Plaintiffs from the action. At the hearing, the Court discussed the status of Plaintiffs’ amended complaint and guardians ad litem with counsel, and granted Plaintiffs 10 days leave to amend the SAC. However, as of September 4, 2026, Plaintiffs have failed to amend the SAC to properly name Minor Plaintiffs as parties to this action. As such, there is no risk of inconsistent rulings under the operative complaint.

Given the above, WLH has sufficiently established that a written arbitration agreement exists between all the named parties to this action, and Plaintiffs have failed to establish their defenses of waiver or inconsistent rulings. Plaintiffs do not raise any other defense to the Agreement, such as unconscionability.